

Court No. - 37

Case :- WRIT - C No. - 35556 of 2013

Petitioner :- M/S Gupta Ice Factory

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Another

Counsel for Petitioner :- Ankit Kumar Gaur

Counsel for Respondent :- A.L. Yadav

Hon'ble Sheo Kumar Singh,J.

Hon'ble Brijesh Kumar Srivastava-II,J.

Heard learned counsel for the petitioner and Sri Yadav, learned Advocate who appears for the respondent Corporation.

Challenge in this petition is the order dated 14.6.2013 passed by the Executive Engineer in which on the premises that the petitioner was using additional load which is not sanctioned/permissible and therefore, he has been asked to contact the office within 15 days to get the required formalities completed failing which coercive action will be taken.

Counsel for the petitioner tried to argue various provisions as contained in U. P. Electricity Supply Code, 2005, as stated in the writ petition.

As various arguments, as has been tried to be argued and demonstrated do not appear to be before the competent authority from the side of the petitioner by way of written submission and, therefore, it is clear that they have not been dealt with by the Executive Engineer.

On a perusal of the order impugned in this petition it is clear that an opinion has been formed in one side manner on which respondents were convinced but at the same time from the charge and to accept it in favour of the respondents, petitioner has to be given an opportunity of filing objection and then the points is to be raised that may be factual or legal will have to be dealt with by speaking order.

This being so we are of the view that keeping the matter pending will be a futile exercise and that may delay the disposal of the matter and, therefore, permit the petitioner to file certified copy of this order and a detailed objection to the

complaint as has been made against him in the impugned order in the light of the facts as has been stated before this Court so that respondent no. 2 may be able to pass speaking order.

Petitioner has to file certified copy of this order and the objection as stated above within a period of two weeks from today upon which respondent no. 2 will pass appropriate speaking order preferably within a period of three weeks from the date of receipt of the move.

After passing of the order by the respondent no. 2 both sides will abide the order.

On the facts, this Court directs that for a period of one month no coercive action will be taken against the petitioner.

In view of the aforesaid, writ petition stands disposed of.

Order Date :- 4.7.2013

Sachdeva